



Notification Waiver Determination

Constellation Software – DerbySoft Holdings

Acquisition	Sail Parent Holdco Ltd (Parent), an acquisition vehicle ultimately wholly owned by Constellation Software Inc. (CSI), applied for a notification waiver in respect of its proposed acquisition of a majority shareholding of around 90% of the issued equity interests in DerbySoft Holdings Limited (DerbySoft), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	15 May 2026

Parties to the Acquisition	The acquirer, Parent, is part of the Vela Operating Group, a group of operating companies owned by Vela Software International Inc., which in turn is a wholly owned subsidiary of CSI. The CSI group of companies (CSI Group), including Vela Operating Group, acquire, manage, and build industry-specific software businesses globally in a variety of public and private sector industries. CSI Group includes two operating groups which, among other things, have teams focused on providing software to the global travel and hospitality industries: the Juniper Group and the Jonas Group. The services provided by these two groups include flight distribution services, booking engine services, and digital marketing and hospitality technology services. The target, DerbySoft, is a B2B commerce platform operating in the global travel industry. This industry involves platforms like DerbySoft providing connectivity, digital marketing, and B2B marketplace services to hotels, airlines, and other travel suppliers (e.g. tour operators), connecting them with distributors and other channels, such as online travel agencies, travel management companies, metasearch platforms, and wholesalers across the globe. The parties both supply digital software solutions and services for the global travel and hospitality industries.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:

	a. there is no horizontal overlap or vertical relationship between any of the operations of CSI Group’s portfolio companies and DerbySoft in Australia b. DerbySoft has a small Australian presence. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC’s approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC’s interim guidance on notification waivers and merger assessment guidelines.
--	---

Determination made by Commissioner Woodward pursuant to a delegation under section 25(1) of the Act